# MUTUAL NON-DISCLOSURE AGREEMENT

Contract No.: AP-NDA-2023-051

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into on 25.10.2023 by and between Alder Precision GmbH, Talstrasse 41, 70188 Stuttgart, Germany (the "Disclosing Party"), and Saltmarsh Cloud Ltd, a company organized under the laws of United Kingdom (the "Recipient"). Each a "Party" and together the "Parties".

## 1. Definitions

In this Agreement, unless the context otherwise requires: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Saturday, Sunday or public holiday in Baden-Wuerttemberg, Germany; "Confidential Information" means all information disclosed by a Party that is marked as confidential or would reasonably be understood to be confidential; "Intellectual Property Rights" means patents, utility models, rights in designs, copyright, database rights, trade marks and all similar rights anywhere in the world. Headings are for convenience only and do not affect interpretation.

## 2. Scope

This Agreement governs the exchange of confidential information between the Parties. The Recipient shall perform its obligations with reasonable skill, care and diligence, in accordance with good industry practice and all applicable laws. Individual orders, statements of work or schedules agreed in writing form part of this Agreement. In case of conflict, the main body of this Agreement prevails over any schedule, and any schedule prevails over an individual order. The Recipient shall appoint a contact person responsible for the relationship.

## 3. Term and Renewal

This Agreement shall commence on 01.12.2023 (the "Effective Date") and shall remain in force until 30.11.2025, unless terminated earlier in accordance with its terms. This Agreement shall not renew automatically; any extension requires a written amendment signed by both Parties.

## 5. Confidentiality

Each Party shall keep the Confidential Information of the other Party strictly confidential, use it only for the purposes of this Agreement and disclose it only to employees, Affiliates and advisers who need to know it and are bound by equivalent obligations. These obligations do not apply to information that is or becomes public through no fault of the receiving Party, was lawfully known before disclosure, or must be disclosed by law. Upon request, the receiving Party shall return or destroy all Confidential Information.

## 7. Termination

Either Party may terminate this Agreement for convenience upon 180 days' prior written notice to the other Party. Either Party may terminate this Agreement with immediate effect by written notice if the other Party commits a material breach which is not remedied within thirty (30) days of being notified, or becomes insolvent. Termination does not affect accrued rights and remedies.

## 8. Governing Law and Jurisdiction

This Agreement and any dispute arising out of it shall be governed by the laws of England and Wales, excluding its conflict of laws rules and the United Nations Convention on Contracts for the International Sale of Goods. The courts competent for the registered office of the defendant shall have exclusive jurisdiction.

## 9. Miscellaneous

Amendments to this Agreement must be made in writing. Neither Party may assign this Agreement without the prior written consent of the other Party, which shall not be unreasonably withheld. If any provision is held invalid, the remaining provisions remain in full force. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior understandings.

## Signatures

For Alder Precision GmbH: Markus Ebner, Head of Procurement. For Saltmarsh Cloud Ltd: Chloe Dubois, Authorized Signatory.